

### ***Defenses To Enforcement***

Plaintiff contends the court should deny this motion, because the arbitration agreement “permeated with unconscionability.” (Opp’n at p. 5.) For an arbitration agreement to be void under the doctrine of unconscionability, “the agreement must be both procedurally and substantively unconscionable.” (Wherry v. Award, Inc. (2011) 192 Cal.App.4th 1242, 1246, citing Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 114–121.) Procedural unconscionability focuses on “oppression” or “surprise” due to unequal bargaining power. Substantive unconscionability, on the other hand, looks at “overly harsh” or “one-sided” results. “But the two elements need not exist to the same degree. The more one is present, the less the other is required.” (Ibid.) Under Armendariz, arbitration clauses in employment contracts should provide for: a neutral arbitrator; adequate discovery; a written award; and, no limitation on remedies. It also should not require employees to pay either unreasonable costs or any arbitrators’ fees or expenses as a condition of access to the arbitration forum. (Armendariz v. Found. Health Psychcare Svcs., Inc. (2000) 24 Cal.4th 83, 102.)

Although there is some procedural unconscionability present, here, it does not exist to a “high” degree. As explained, above, the Court credits Ms. Vega’s testimony that Plaintiff chose to receive the documents in English when given an option to choose between English or Spanish. Although Plaintiff claims the agreement “omits the name of the arbitration provider and fails to include the applicable arbitration rules,” this argument cuts against

finding unconscionability, because the choice of arbitrator was not unilaterally pre-designated by Defendant.

With respect to substantive unconscionability, Plaintiff points to the purported “lack of express provisions for Plaintiff’s right to discovery.” (Opp’n at pp. 8-9.) This argument is not well-taken, because the agreement expressly states that CCP section 1283.05 “and all of the Act’s other mandatory and permissive rights to discovery shall also apply, and the arbitrator shall have the same authority as a state or federal court would have to issue subpoenas to third parties for production of documents and for depositions, in addition to subpoenas to appear at any arbitration hearing.” Thus, the arbitration does not purport to limit Plaintiff’s right to discovery that he would otherwise obtain under the Code. Plaintiff does not contend that any of the arbitration provisions otherwise fail to meet the Armendariz factors, e.g., a neutral arbitrator, adequate discovery, or payment of unreasonable costs.

Accordingly, the Court finds Plaintiff has not shown that the arbitration agreement is unenforceable.

The motion to compel arbitration is **GRANTED**. Plaintiff is ordered to arbitrate all of his claims. The action is stayed pending final resolution of the arbitration. (Code Civ. Proc. § 1281.4.)

The Case Management Conference is vacated. The Court sets an arbitration status conference for **March 26, 2027**, at **9:00 a.m.** in Department C21.

Defendant shall give notice of the ruling.